

David Milne

00:00

This call is now being recorded.

AshLe' Penn

00:02

Hello?

David Milne

00:04

Yes AshLe, it's Dave here from ODHS. I'm just calling you back.

AshLe' Penn

00:08

Oh, thank you for returning my call, Mr. Milne. I had a question, a few questions for you related to some of the meetings that you have had with my daughter. And they relate to the basis that you've given her for, you know, as a justification as to why she's not able to be around me or my home. It's come to my knowledge that you have told my daughter that you need to ensure that there's not a meth lab at my house. Is this true?

David Milne

00:55

No, I've never mentioned anything about a meth lab at your house or the word meth lab has never entered a Conversation with me and Almira

AshLe' Penn

01:03

okay, About substance use whatsoever. Because I understand that. Well, actually, rather. I'd rather say this, I don't quite understand because I am lacking that petition. I don't know what my allegations of harm are. And that is a serious defect in you all's case that I will be taking action on probably earlier next week. I've been working on my filings, but it's also come to my knowledge that Amira has had some recent medical appointments that I wasn't aware of. I'm simply not being informed under the guise that I'm not cooperative or I'm. Well, those are the words that I'm not cooperative. Now, you have discussed with her my, from your perspective, lack of cooperation, correct?

David Milne

02:13

David Milne

03:24

Not lack of cooperation. What I said was that in order for us to work with you, the expectation is that you go to court. And once we do that, then we can start working with you. I just explained

the process is that if the mom accepts the papers and we said we're going to the papers, then they go to court and then we can start working with you with regards to reunification. So just explain the process and understand it. And you know, the judge commented it because that's what Almira was asking, but she wanted to hear or she wanted to have documentation about what happened at the last court here. And I said that it's all on tape. You can ask your attorney to get a transcript of the case. And that's what Judge Rooney commented. One was with the juvenile Court is an expectation that the parent appears at the shelter hearing.

AshLe' Penn

03:37

So, Mr. Milne, were you at the shelter hearing?

David Milne

03:40

And I just said that, you know, we've got to serve mum papers, but, you know, at this time we've been unable to serve your mom papers.

AshLe' Penn

03:48

Okay. Have you. Were you at the shelter hearing. Mr. Milne?

David Milne

03:51

Sorry?

AshLe' Penn

03:52

Were you at the shelter hearing?

David Milne

03:55

I was, yeah.

AshLe' Penn

03:56

Okay. So related to that, you've not been unable to serve me paperwork. You haven't tried. And secondly...

David Milne

04:04

I've left mine. I've been at your door, and I've left my card asking you to please call me. I've written please call me on the back of my business card. Nobody is answering the door..

AshLe' Penn

04:18

No. No. So here's the thing, and we've talked about this. I don't really want to spend time rehashing what is true and how the law works. Even from a layperson's perspective. I'm not required to accept every invitation at my front door unexpected. I don't even know if you're home. I did not receive a card at my front door. I am in communication with you, and yet you explain that process to my daughter. As far as being expected in court, accepting your paperwork, it seems to me like DHS wants me to do its job while it is not doing its job lawfully. So this is not the way the process works. The process works like this. I'm being very careful not to. I'm being very careful not to interrupt you.

AshLe' Penn

05:11

I'm being very careful not to interrupt you because I would rather have a productive conversation. I've been very careful. So please respect that. And so the way that this process works is that in order for. Excuse me. In order for the Juvenile Dependency Court to take jurisdiction, even temporarily, over a child, that they may only do so. And the word only is not used very often in Oregon Revised Statutes, but it is for this. And so what I believe happened because you were there at the shelter hearing, is that miss Ireland. Mahoney. I believe that miss Mahoney entered an appearance for me where I did not authorize her to do that. And that's something that I'll have to untangle myself. But that is the only way that the Juvenile Dependency Court could possibly maintain this case as it is, with an attorney who has misrepresented their authority to appear on my behalf, whom does not represent me and would totally be violating the law by entering an appearance on my behalf. And is that what happened?

David Milne

06:32

That's. That's between you and your attorney? I would just like to ask.

AshLe' Penn

06:35

Absolutely.

David Milne

06:39

You said you wouldn't interrupt me. So is there a date, time next week where we can meet and I can serve you with the papers that the court is requiring to be received?

AshLe' Penn

06:51

Yes, there is. Yes, there is. Let's set that time up. Because when that time happens, Mr. Milne, prior to that time occurring, DHS, you, as the current caseworker, operating within your ethical and legal framework, you'll be required before that day to make note on record of the perjury

that took place at the shelter hearing, of DHS's failure to offer services and DHS's failure to acknowledge that a family member whom was present prior to protective custody being taken was present and could mitigate the removal. But DHS did not measure parental capacity. We've gone through this. I'm not going to make this. I'm not going to help you cure your defects. I'm. I want to accept service. Let's get this clear. I want to accept service.

AshLe' Penn

07:48

But until you honor your process and until you act lawfully, because the things that I'm saying, they're not just bothersome, they're not annoying, they're unlawful. You've removed a child under the premise that you've prevented the removal, that there was such an immediate harm, that the removal was absolutely imminent and necessary, that there's nothing that could have possibly prevented it. You didn't measure my parental capacity. These are things that are integral to your job. You don't just get to forget them, move on, act like you didn't forget them, and put that weight on the parent, because they're there for a reason. Can you help me understand why these steps are just so inconsequential to you when that is, when that's in Oregon's plan?

David Milne

08:45

You're not letting me answer it.

AshLe' Penn

08:47

Well, I will, but Oregon has given assurances to the federal government and the state plan, and those assurances have not taken place. And why.

David Milne

08:56

So from what I can understand, when being at the shelter hearing, the judge explained that they would accept the motion that you sent. However, it was misinformed. And the judge commented on record that it is an expectation of that court for parents to appear before them. And I believe that when you're saying that everything that DHS has done isn't legal.

AshLe' Penn

09:22

No, no. That doesn't address anything that I said. And that's the second hearing. No, hold on. I won't let you obfuscate. Mr. Milne, I. Answer the question. That was at the review hearing. That's not the shelter hearing. That was not the shelter hearing. That was the second hearing. I'm talking about. At the shelter hearing. We're talking about, prior to removal, your skipping steps, and I don't want to do that. You're. What that's called is called obfuscation. You're not answering the question and then telling me not to interrupt you. Please answer my question.

David Milne

09:52

I believe the agency has acted in accordance to the directions of the court.

AshLe' Penn

09:58

No, no, no, no. Stop, stop, stop. Stop. stop. Mr. Milne, before we go to court, this is on September 6th. The shelter hearing was on September 8th. Let's forget about the court for a moment, because that's what you guys are relying on and hiding behind. Let's move forward. No, no. Wait a minute. Hold on a second. This is important, and we really do need to have this out, so just don't get. You need to stop.

David Milne

10:26

I think that's what you want to. You want to...

AshLe' Penn

10:28

For that shelter hearing.

David Milne

10:30

What my job is. I called you.

AshLe' Penn

10:32

But it is your job. But it is. And I'm only talking about your job. I'm not talking about the court. I'm talking about preventing the removal. Before this.

David Milne

10:40

Okay. The removal already happened.

David Milne

10:42

Oh, really? Absolutely! Is that how DHS comports itself? It does what it wants, does not prevent the removal, does not offer services, refuses to acknowledge that family is present, and then you say, oh, well, we broke the law. So what?

David Milne

10:58

I never said we broke the law. I said, I believe.

AshLe' Penn

11:00

But, you know, because you won't address it. Mr. Milne, you are going to the court. You're hiding behind the court.

David Milne

11:06

We're talking about prior to that.

I'm not hiding behind anything.

AshLe' Penn

11:09

You are, because the question is very clear. And if you're a caseworker for DHS in Oregon, then I know you know what I'm talking about. You have a responsibility to prevent the removal. You have a responsibility to measure parental capacity. You have a responsibility to acknowledge family that is present. You have an. You have a responsibility to offer services. You have a responsibility not to perjure yourself in front of court at the removal hearing, but you want to skip past all of that and go to the review hearing.

David Milne

11:35

The removal has already happened.

AshLe' Penn

11:39

Yes, it has. And we're talking about prior to that. Mr. Milne, prior to the removal taking place, are you really. Are you really going to sit here on this phone right now and tell me so what? The removal happened and it happened the way I'm saying it happened, because that's how it happened. But so what? That's what you're saying because the court accepted your testimony.

David Milne

12:07

I, I, I, that's your word.

AshLe' Penn

12:11

It's not my word. You guys told the court that I refused a safety plan that was never offered to me.

David Milne

12:16

Was there anything I can help you? Is there anything I can help you moving forward?

AshLe' Penn

12:21

Absolutely. Absolutely, there is. We can talk about. Absolutely there is. We can talk about the records that you're going to send me, Mr. Milne? The records that reflect what services were offered to prevent the removal. You. And you can send that to me digitally. You can send me. Yeah, absolutely. I'd like some documents from you. I'd like to see whatever assessments that were conducted on me as a parent to measure my parental capacity. I'd like to see the record of DHS attempting to keep my family intact prior to the removal because it seems to me like. And thank you for acknowledging it, you recognize that your agency removed a child without doing what it's supposed to do first and then you hide behind the court

You're contradicting yourself.

I'm contradicting myself. How?

David Milne

13:20

Because you've said on several times that there was a nine minute period when DHS was.

AshLe' Penn

13:27

I didn't say that. It was a 19 minute period. It was 19 minutes between 5:40 and 5:59.

David Milne

13:34

They were discussing returning.

AshLe' Penn

13:38

No, they. What they expected hospital. I know what I said because I live it. And that's my daughter and I actually love her and I actually do want her and have the best intentions for her. So at 5:40 when I received a message that says, hey, Ms. Penn, where are you? We're looking for you. We need you here to retrieve your daughter. I said, listen, I don't have transportation. I'm not able to be. I'm sending my family, who is a mitigating factor, despite the fact that you didn't measure my parental capacity or offer services or the fact that Amira denies making that statement in front of dhs. And with my uncle's present. Despite all of that, now we have a family member who was present prior to removal mitigating the removal and DHS doesn't even acknowledge that.

So we are talking about your job and acting unlawfully because you're telling me that DHS did everything it was supposed to do. Did it? Well, I would like to see those records. Mr. Milne, you asked me a very specific question. I would like to see those records. What services were offered? A safety plan that wasn't offered to me until October 1st. Is that what you're saying?

David Milne

14:42

No, I believe that all these records would have been given to you had you appeared in court.

Bull snap

It's called the disposition.

AshLe' Penn

14:50

Bull snap. You know why? You know why? Because DHS failed to serve me. It's not my job to serve myself. I have to serve myself now.

David Milne

15:01

No, no you don't.

AshLe' Penn

15:03

No, I don't. But I have several communications between myself and Ashley Crafton and Heather Kiddo and yourself, prior to the first time you tried to serve me, which was on October 14th or November 14th. It was. I was some months later the first time anyone ever mentioned a service to me. The first time was months after her removal. Mr. Milne, are you really going to act this obtuse? Are we really going to be this obtuse and indifferent to the process? That's what this is. This is a willful indifference to your process.

David Milne

15:38

That's your interpretation of what happened.

AshLe' Penn

15:40

And, no, you're directly ignoring what I'm saying to you. That is factual on the record. That is not me interpreting anything. I'm begging you to stop obfuscating and to acknowledge, or at least. At least just acknowledge. Take a position. But you're not even doing that, which is actually unlawful in itself because you're an administrative agency. You have to take a position. You can't just ignore what I'm saying. And I'm saying to you that prior to the court making the statement, that I'm expected to be there without having any compulsion, but through service of summons, because that's what the summons says, the summon says, be in court on this day without that taking place and not even being offered to me until months after her removal.

AshLe' Penn

16:28

You'd have to help me understand how you're not acknowledging that DHS didn't do nearly any of what it is required to do prior to removing a child from their family. And you want to talk about

court. I'm talking about on September 6th, 7th, and the morning of the 8th. And yes, the court. You should also know this. It's not your. This is not your wheelhouse. But that court clerk and that judge saying that my ORCP motion doesn't apply to juvenile dependency. That's probably because I have record of filing a motion prior to that the court clerk took and threw in the trash and did not mention orcp. It only mentioned ors for 419B. They couldn't have that one make it through because that one was jurisdictional and they took my filing and they threw it away. That's, again, not your wheelhouse.

AshLe' Penn

17:32

But I have appeared more than once through how. In. In a way that Oregon recognizes appearance, and that is through a written filing. And I was told I could not, and I still sent it. I have record of it. But, Mr. Milne, none of that is the reason why I'm talking to you as the caseworker. I'm talking to you as the caseworker because I would like to see the records prior to the removal of what DHS did. You know, reasonable efforts, that whole thing you guys are getting paid for. Amira and you're only getting paid for her because you claimed to have exhausted reasonable efforts to prevent that removal. Which means you're stealing.

David Milne

18:20

Yeah, I don't think the judge would have signed the order.

AshLe' Penn

18:24

Who cares about the judge. You guys lied. You lied to her without a party present. Of course she's going to believe what you said because you lied. That doesn't matter. Stop talking about the court. And you have a responsibility prior to going to court, Mr. Milne, and that's important. And you want me to accept the service? To jump into court when you guys have fast forwarded past what you're supposed to do. So let's talk about prior to going to court.

David Milne

18:53

No, because. Because it's. You're talking about the past and I.

AshLe' Penn

18:57

I'm talking about the past. Mr. Milne, thank you for your time. I needed this call. I needed this call in my records. Thank you so much. Appreciate it. Have a good day.

David Milne

19:06

You, too.

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